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THE

Indian Will & Inheritance Playbook

2026-27 Edition

Write a will that holds up. Understand who inherits.
Transfer an estate without a family war.

Verified from the Indian Succession Act, the Hindu Succession Act, the 2007 Senior Citizens Act, the Registration Act and the Income-tax Act, 2025 · October 2026

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This is a general information guide, not legal advice. It explains the law and the official process in plain English. For your own family situation, a disputed property or a large estate, consult a qualified advocate.

PART 1

Why This Book Exists

Most Indian families do not lose their money in the stock market or to bad business. They lose it in the years after a death, in registry offices, bank branches and civil courts, arguing about who owns what. A flat that could have been transferred in six weeks sits in dispute for twelve years because nobody wrote a one-page document while the owner was alive.

This playbook is that document, explained. It shows you how to write a will that actually holds up, who inherits what if you do not, and the exact steps to move property, bank balances, shares and mutual funds after someone dies without starting a family war.

Three things changed in the last twelve months

If you read an inheritance guide written before 2025, parts of it are already wrong. Three changes matter.

1. Probate is no longer compulsory anywhere in India. The Repealing and Amending Act, 2025 omitted Section 213 of the Indian Succession Act, 1925. Until December 2025, a will made by a Hindu, Jain, Sikh, Buddhist or Parsi in the old presidency towns of Mumbai, Chennai and Kolkata had to be proved in court before the executor could act on it. That compulsion is gone. Executors can now act on a valid will directly, unless someone contests it.
2. The Supreme Court tightened the test for a valid will. In Gopal Krishan v. Daulat Ram (2 January 2025) and again in Pazhanathal v. Alamathal (13 August 2026), the Court made the same point: a will is not valid merely because it carries your signature or thumb impression, or because it is registered. The person relying on it must prove that it was executed and attested exactly as Section 63 requires. A registered will is not automatically a proved will.
3. A new income-tax law took effect on 1 April 2026. The Income-tax Act, 2025 replaced the 1961 Act. It does not introduce an inheritance tax - India still has none - but it renumbers the sections that govern gifts, the cost of inherited assets, and capital gains when you later sell what you inherited. Any estate plan that quotes old section numbers now contains stale references.

The five myths that cost families the most

The belief	The reality
"My eldest son inherits everything by default."	No personal law in India says this. On intestacy, a Hindu widow, all sons and all daughters take equal shares in the father's self-acquired property.
"The nominee on my account becomes the owner."	For a bank account, a demat account or a mutual fund, the nominee is a custodian who collects the asset and hands it to the legal heirs. The will, or the succession law, decides who actually owns it.
"A registered will cannot be challenged."	Registration is optional evidence. It does not prove sound mind, free will or correct attestation. Courts have set aside registered wills.
"Father's property is automatically ancestral."	Only property inherited through an unbroken male line and still held jointly is ancestral. Property a father bought himself is self-acquired and he can leave it to anyone.
"A daughter loses her share once she marries."	She does not. A daughter is a Class I heir and, since the 2005 amendment, a coparcener by birth in ancestral property, married or not.

This is a general information guide, not legal advice. It explains the law and the official process in plain English so you can act with confidence and ask the right questions. For your specific family situation, a property with a live dispute, or a large estate, work with a qualified advocate or a registered estate planner.

How to use this book

Read Parts 2 to 4 first, because they tell you which law applies to you and what makes a will valid. Then jump to whichever part matches your situation: Part 6 if you are signing today, Part 8 if someone has died, Part 9 if you are filling in nomination forms, Part 13 if you are a senior citizen, Part 17 if you need the step-by-step action plan. Part 19 gives you fill-in templates you can copy.

PART 2

The Two Roads: With a Will, and Without

Every estate in India travels down one of exactly two roads. If the person who died left a valid will, the estate follows that will. If not, it follows the succession law that applies to their religion. There is no third road, and the difference between the two is enormous.

Testamentary succession: the road you choose

A will is a legal declaration of how you want your property dealt with after your death. Section 2(h) of the Indian Succession Act, 1925 defines it that way. It takes effect only on death, it can be changed any time while you are alive, and - within the limits of your personal law - it lets you decide who gets what.

The freedom a will gives you differs by community. A Hindu, Christian, Parsi, Jain, Sikh or Buddhist testator has wide testamentary freedom: you may leave your self-acquired property to anyone, including people who are not your relatives. A Muslim testator is different - Part 11 explains the one-third rule that limits how much of the estate can be given away by will.

Intestate succession: the road you fall into

Die without a valid will and the law decides for you. It is not random - it follows a fixed order of heirs set out in your personal law - but it is rigid. It cannot be tuned to your family's real situation. It will not, for example, give the family home to the daughter who looked after you, or keep a business in the hands of the child who actually runs it. It divides by rule.

Religion / law	Law when there is a will	Law when there is no will (intestate)
Hindu, Jain, Sikh, Buddhist	Indian Succession Act, 1925 (execution and proof of wills)	Hindu Succession Act, 1956
Christian, Parsi, Jewish	Indian Succession Act, 1925	Indian Succession Act, 1925 (Part V)
Muslim	Indian Succession Act for form; Muslim personal law for limits	Muslim Personal Law (Shariat) Application Act, 1937
Marriage under the Special Marriage Act, 1954	Indian Succession Act, 1925	Indian Succession Act, 1925
NRI with Indian assets	Indian law for the Indian assets	Indian law for the Indian assets

Why the road matters more than the destination

It is tempting to assume that if your family gets along, the road does not matter. It matters, for three practical reasons.

- Speed. A clear will lets an executor collect and distribute assets with far less paperwork. Without one, banks, depositories and registrars demand proof of heirship before they release anything.
- Cost. Intestate transfers can need a succession certificate or a legal heir certificate - each a court or revenue process with its own fees, notices and delay. A will usually avoids them.
- Control. A will is the only tool that lets you name an executor, appoint a guardian for a minor child, leave a specific item to a specific person, and add a residuary clause that catches everything you forgot to list.

> *The single highest-return hour in personal finance is the hour you spend writing and signing a clear will. It costs nothing, needs no lawyer, and can save your family years.*

PART 3

Which Law Governs Your Estate

India has no single law of succession. Which rules apply to you depends on your religion and, sometimes, on the type of marriage you entered. Get this wrong and the rest of your plan is built on sand.

The four families of law

For succession purposes, India's personal laws fall into four broad groups. The first question to answer, before you write anything, is which group you are in.

Group	Who it covers	Key statute
Hindu law	Hindus, Buddhists, Jains, Sikhs	Hindu Succession Act, 1956
Muslim law	Muslims (Sunni and Shia rules differ)	Muslim Personal Law (Shariat) Application Act, 1937
Indian Succession Act	Christians, Parsis, Jews, and anyone married under the Special Marriage Act, 1954	Indian Succession Act, 1925
Interfaith and civil marriages	Couples married under the Special Marriage Act, 1954	Indian Succession Act, 1925 for succession

The Special Marriage Act changes everything

If you married under the Special Marriage Act, 1954 - the route most interfaith and many civil couples take - your marriage is governed by the Indian Succession Act, 1925, not by the personal law you were born into. This is a genuine switch, and it catches people out. A Muslim who marries under the Special Marriage Act is not bound by the one-third rule; the Indian Succession Act's wider testamentary freedom applies. A Hindu couple married under it may also find that certain Hindu-law presumptions do not apply to them.

The consequence is simple to state and easy to forget: the law that governs your estate is decided by your religion and your marriage, together. If either is unusual in your family, confirm the position before you draft.

You cannot opt out of personal law by writing it in a will

A will cannot change which succession law applies to you. If you are a Muslim, a will cannot give away more than the permitted share of your estate to non-heirs, however clearly you write it - the court will scale it back to what the law allows. If you are a Hindu, a will cannot take away a coparcener's birthright in genuinely ancestral property. A will works within the framework of your personal law; it does not replace it.

Two practical checks before you draft

1. Confirm the law that applies to you and to your spouse. If your marriage was registered under the Special Marriage Act, say so in the will so there is no argument later.
2. Separate your assets by their nature. Ancestral and self-acquired property follow different rules (Part 12); jointly held property passes to the surviving joint holder outside your will (Part 9). A good will is written knowing which assets it can actually control.

Personal law is religion-specific and, in the case of Muslim law, differs between Sunni and Shia traditions. For anything complex, confirm your position with an advocate who practises in that area of law.

PART 4

The Valid Will: Five Requirements

Indian law asks for very little to make a will valid, and that is exactly why so many wills fail. The requirements are small, precise, and easy to miss. Section 63 of the Indian Succession Act, 1925 sets them out for an ordinary - what the Act calls "unprivileged" - will.

What a valid will actually needs

Requirement	What the law says	The practical meaning
1. Writing	The will must be in writing.	It can be handwritten or typed, on plain paper. No stamp paper, no notary, no lawyer needed.
2. Testator's signature	You must sign, or affix your mark, or direct another person to sign in your presence and by your direction.	Sign every page. The signature must show an intention to give effect to the document as your will.
3. Sound mind and majority	You must be of sound mind and not a minor at execution.	You must understand what you own and who you are giving it to. For an elderly testator, a doctor as a witness helps.
4. Free will	The will must be made voluntarily, without coercion, fraud or undue influence.	Nobody may pressure you into it. The witnesses should be independent of the gifts where possible.
5. Two witnesses	At least two witnesses must attest the will, each having seen you sign or having received your acknowledgement of the signature, and each signing in your presence.	Two people, present at the signing, who sign and give their full name, address and contact details.

What a will does not need

This list surprises people, and it saves them money.

- No stamp paper. A will on plain A4 paper is valid.
- No registration. Registration is optional under the Registration Act, 1908, and an unregistered will is fully valid.
- No notarisation. Notarising is not the same as the legal witnessing requirement, and it does not cure a badly witnessed will.
- No lawyer. You can write and sign a valid will yourself, and most simple estates should.
- No fee. There is no court fee to make a will; a small fee applies only if you choose to register it (Part 7).

When you should use a lawyer

Draft it yourself for a straightforward estate: a home, bank accounts, some investments, and children. Bring in an advocate when the estate includes disputed property, business interests, agricultural land across states, a beneficiary with special needs who needs a trust, assets in more than one country, or a family where a challenge is likely. The cost of professional drafting is small next to the cost of a will that fails.

Codicils and revoking an old will

For a small change - one new asset, one changed beneficiary - you can add a codicil: a short, separately signed and witnessed document that amends the will. For a major change - marriage, divorce, a birth, or a large change in assets - write a fresh will and revoke the old one, then destroy the earlier original so two documents do not circulate. Always state in the new will that you revoke all earlier wills and codicils.

> *A will is not permanent. Review it after every marriage, divorce, birth, death in the family, or big purchase or sale. An out-of-date will can be worse than none, because it creates false confidence.*

PART 5

The Anatomy of a Will: Nine Clauses

A well-built will is short and specific. It does not need legal language, but it does need to answer every question a bank, a registrar or a court could later ask. These nine clauses cover a normal Indian estate. Use them as a checklist and copy the model wording from Part 19.

1. Opening declaration and revocation

Identify yourself, state that this is your will, and revoke earlier ones. The revocation clause prevents an old will surfacing later to create doubt.

> *Model: "I, [full name], son/daughter of [name], residing at [full address], being of sound mind and acting of my own free will, declare this to be my last will. I revoke all earlier wills and codicils made by me."*

2. Family description

List your spouse, children and any dependants, with full names and relationships. This is context, not a condition of validity, but it removes any argument that you forgot someone.

3. Specific bequests

Name each asset and the person who is to receive it, with enough detail to identify it beyond doubt. Give only the interest you legally own, and note any loan or third-party right that attaches to the asset.

> *Model: "I give my entire legally owned share and interest in the residential flat at [complete address and flat number] to [beneficiary's full name], subject to applicable liabilities and third-party rights."*

4. Contingency or backup beneficiary

Say what happens if a beneficiary dies before you. Without this, the result can fall back to statutory rules. Section 109 of the Indian Succession Act may stop certain bequests to children or lineal descendants from lapsing in defined situations, but a clear backup clause is safer.

5. Residuary clause

This is the safety net. It catches everything you did not name, including assets you acquire after signing. A will without a residuary clause has gaps.

> *Model: "I give the rest and remainder of my estate, wherever situated and not otherwise disposed of under this will, to [residuary beneficiary]. If that beneficiary does not survive me, the residue shall pass to [alternate]."*

6. Executor and alternate executor

The executor is the person who collects the assets and carries out your wishes. Choose someone capable of handling documents, banks and beneficiaries, and name an alternate in case the first cannot act.

7. Guardian for minor children

If you have minor children, state your preferred guardian. This does not remove the rights of a surviving parent or the court's duty to consider the child's welfare, but it guides the decision. Complex arrangements - a child with special needs, or a large trust - call for a separate trust deed.

8. Debts, liabilities and digital assets

State how your liabilities should be met, and list your digital assets - bank and investment logins held in a sealed note, cryptocurrency, monetised websites, online businesses. Digital holdings are inheritable property in India; name them, and keep credentials in a sealed envelope with the will rather than writing passwords inside it.

9. Signing block and witness attestation

End with your signature, the date and place, and the signature block for two witnesses. The witness block should capture each witness's full name, address and contact number, so they can be traced years later if the will is challenged.

Clause	Why it earns its place	Common failure if missing
Revocation	Kills earlier wills	An old will resurfaces and creates doubt
Family description	Removes 'you forgot me' claims	A distant relative claims exclusion
Specific bequests	Identifies each asset	Two flats, one name, endless argument
Backup beneficiary	Handles a predeceased heir	Bequest lapses or falls to statute
Residuary clause	Catches everything unnamed	Later assets have no destination
Executor	Names who acts	Family argues over who is in charge
Guardian	Protects minors	Court decides, without your guidance
Digital assets	Covers modern wealth	Crypto and online income are lost
Witness block	Makes witnesses traceable	Attestation cannot be proved in court

PART 6

Signing and Witnesses: Two Lessons from the Supreme Court

A will is a strange document: the person who could confirm it is dead by the time it matters. That is why the law leans so heavily on the witnesses, and why the Supreme Court has repeatedly refused to soften the rules. Two recent decisions show exactly where wills fail.

Lesson one: signing is not enough (Gopal Krishan v. Daulat Ram, 2025)

In Gopal Krishan v. Daulat Ram, decided on 2 January 2025, the Supreme Court restated the statutory conditions for proving a will. Each witness must have either seen the testator sign or affix a mark, seen another person sign at the testator's direction and in their presence, or received the testator's personal acknowledgement of the signature. Each witness must then sign in the testator's presence. The Court also confirmed that the law does not require both witnesses to be present at the same moment - though a single, well-documented signing session is easier to prove.

Lesson two: a registered will is not a proved will (Pazhanathal v. Alamathal, 2026)

In Pazhanathal v. Alamathal, decided on 13 August 2026, the Court held that a will cannot be treated as valid merely because it carries the testator's signature or thumb impression, or because it has been registered. The person relying on the will must establish its due execution and attestation in accordance with Section 63(c) of the Indian Succession Act and the applicable rules of evidence. Registration does not remove the statutory requirement. Put plainly: a registered will is not necessarily a proved will.

How to sign so your will cannot be picked apart

1. Arrange one signing session. Have both witnesses present at the same time, watching you sign. It is not legally required, but it is far easier to prove.
2. Sign or initial every page, and number the pages. Date and place the signing.
3. Have each witness sign after you, in your presence, and write their full name, address and phone number beside the signature.
4. Choose witnesses who are independent of the gifts. A beneficiary should never be a witness - it invites a challenge. For an elderly testator, a doctor as one witness helps answer any later claim of unsound mind.
5. Record a short video of the signing, if the family situation is tense. It is not required, but it is powerful evidence of free will and sound mind.
6. Tell your executor where the original is kept. A will nobody can find is a will that does not exist.

The two most common ways a genuine will is defeated: witnesses who cannot be traced, and an allegation that the testator was not of sound mind. Both are prevented by choosing traceable, independent witnesses and documenting the signing.

Privileged wills: a narrow exception

Soldiers on active service and mariners at sea can make a "privileged" will under the Act, which may be oral or informal and need not follow the Section 63 rules. This exception is narrow and applies only in the circumstances the Act defines. For everyone else, the ordinary rules above apply in full.

PART 7

Registration: Optional, Cheap, and Worth Knowing

Registering a will is optional. An unregistered will is fully valid if it meets the Section 63 requirements. But registration is cheap, adds a strong evidentiary record, and makes the will harder to tamper with. Here is exactly how it works, and what it does not do.

What registration does, and does not, prove

Registration does...	Registration does not...
Create an official record of the will's execution	Prove sound mind, free will, or absence of fraud
Give strong evidence that the document was not altered later	Cure an improperly witnessed will
Make probate smoother, and reduce forgery risk	Turn a defective will into a valid one
Store a certified copy with the Sub-Registrar	Replace the need for two attesting witnesses

How to register a will

1. Draft the will and sign it with two witnesses, exactly as in Part 6.
2. Go to the Sub-Registrar of Assurances office with jurisdiction over where you live, or where the property is located.
3. Carry the original will, your identity and address proof, passport-size photographs, and the identity proof of both witnesses.
4. The testator signs in the presence of the Sub-Registrar, and both witnesses sign and give their identity proof.
5. The Sub-Registrar verifies identity and registers the will under the Registration Act, 1908. The original is kept in the Sub-Registrar's records, and you receive a certified copy.

Fees are nominal and vary by state

There is no stamp duty on a will, because a will is not a transfer of property during your lifetime. Some states charge a small stamp fee. Registration fees are in the low hundreds of rupees and differ from state to state.

State	Approximate registration fee
Delhi	Rs. 100 to Rs. 200
Uttar Pradesh	Around Rs. 100
Maharashtra	Rs. 200 to Rs. 500
Tamil Nadu	Rs. 100 to Rs. 300
Karnataka	Rs. 100 to Rs. 200
Rajasthan	Around Rs. 100

Several states also offer online appointment booking or partial online registration through their registration portals - for example, igrsup.gov.in in Uttar Pradesh, igregistration.maharashtra.gov.in in Maharashtra, tnreginet.gov.in in Tamil Nadu and igrs.rajasthan.gov.in in Rajasthan. Even with online portals, the physical presence of the testator and witnesses at the Sub-Registrar's office is normally required for final registration. Confirm your own state's current fee and process with the local office.

The sealed-cover option

Under Sections 42 to 45 of the Registration Act, 1908, you can deposit a will in a sealed cover with a Registrar instead of registering its contents. This is a separate route. Depositing a sealed cover is not the same as registering the will, and it does not replace the execution requirements - but it keeps the contents private until death, which some testators prefer.

> *Registering a will is a good habit, not a legal requirement. Do it if the family situation is complicated or the estate is large. Skip it if the estate is simple and the family is settled - but keep the original somewhere safe and tell your executor where.*

PART 8

Probate, Letters of Administration, Succession Certificate, Legal Heir Certificate

These four documents are constantly confused, and confusing them wastes months. They do different jobs. Two are about proving a will, one is about collecting debts and securities, and one is a revenue-office record of who the heirs are.

What changed in December 2025

Until late 2025, Section 213 of the Indian Succession Act made probate compulsory for certain wills - those made by a Hindu, Jain, Sikh, Buddhist or Parsi testator in, or dealing with immovable property in, the old presidency-town jurisdictions of Mumbai, Chennai and Kolkata. The Repealing and Amending Act, 2025 omitted Section 213 entirely. Mandatory probate no longer exists anywhere in India, for any community. An executor can now act on a valid will directly, collecting assets and distributing them, unless someone contests the will.

This is a real change, and it is the single most useful thing in this book for anyone who has just lost a parent and is staring at a will. You are no longer forced into court first. Probate still exists and can still be sought voluntarily - and may be worth seeking if you expect a dispute, if the estate is large and complex, or if a particular bank or land registry insists on it as a matter of internal policy even though the law no longer requires it.

The four documents compared

Document	What it does	When you need it
Probate	A court certifies a will as valid and confirms the executor's authority.	Voluntary now. Useful for disputes, large or complex estates, or where an institution demands it.
Letters of Administration	A court authorises someone to administer the estate where there is no effective executor, or no will.	When there is a will but no executor able to act, or when there is no will at all.
Succession Certificate	A court authorises collection of debts and securities - bank deposits, shares, bonds - in the deceased's name.	When a bank, depository or registrar demands it before releasing money or securities, typically without a will or nomination.
Legal Heir Certificate	A revenue or local authority records who the legal heirs are.	For routine matters - pension, provident fund, some bank claims, utility transfers - where no court document is insisted on.

Succession certificate: what it covers

Under Part X of the Indian Succession Act, a succession certificate is principally about debts and securities. It authorises the holder to collect them, and it protects the bank or company that pays against later claims. It is not a substitute for a title decree over land or a house. A succession certificate is granted to the person entitled to the effects of the deceased, and it is the standard route when there is no will, no nomination, and the institution will not release the asset otherwise.

Which do you actually need?

1. If there is a valid will and a willing executor: in most cases, nothing. Act on the will. Probate only if contested, complex, or demanded.

2. If there is a will but no effective executor: letters of administration with the will annexed.
3. If there is no will and you are dealing with bank deposits or shares: a succession certificate, unless the amount is small enough for the bank's own affidavit-and-indemnity route (Part 9).
4. If you just need a record of the heirs for a pension, PF or utility transfer: a legal heir certificate from the revenue authority.

Probate and letters of administration are granted by civil courts (the District Court, or the High Court in its ordinary original civil jurisdiction). A succession certificate is also a court grant. A legal heir certificate is not a court document - it comes from the revenue authority or local administration.

PART 9

Nomination Is Not Inheritance

This is the misunderstanding that causes the most bitter, avoidable family disputes in India. Filling in a nomination form feels like deciding who gets the money. It is not. For most financial assets, a nominee is a custodian, not an owner.

What a nominee actually does

A nominee's job is to collect the asset from the institution after your death and hand it to the rightful heirs. In most cases the nominee does not become the owner. Courts, including the Supreme Court, have repeatedly confirmed that for shares and mutual funds the nominee is only a custodian. There is one clear exception: in life insurance, the nominee usually receives the payout as a beneficial owner.

Asset	What the nominee can do	Who actually inherits
Property (flat, land)	Nothing - there is no nominee mechanism for property	The will, or succession law if there is none
Life insurance	Receives the payout as beneficial owner - the main exception	Usually the nominee, unless the will names a different beneficiary
Shares and demat	Collects the holdings from the depository or registrar	Legal heirs - courts confirm the nominee is only a custodian
Mutual funds	Collects the units from the AMC or registrar	Legal heirs, under the will or succession law
Bank account (single holder)	Collects the balance from the bank	Legal heirs, under the will or succession law
Joint bank or demat account	Not relevant while both holders are alive	The surviving joint holder, automatically

The document slabs banks and registrars actually use

Where there is no will and no nomination, institutions do not all demand a court certificate. SEBI and the banks use value-based slabs. Below the first slab, an affidavit, a no-objection certificate from the other heirs and an indemnity bond are usually enough; above it, a succession certificate, probate or letters of administration is required. The exact slabs differ between institutions, so confirm the current threshold with yours.

Route	Typical threshold	Documents usually asked for
Simple affidavit route	Small values (a few lakh)	Transmission form, death certificate, PAN, affidavit of all heirs, NOC from non-claimants, indemnity bond
Mid slab	Above the simple slab, up to about Rs. 10 lakh	The above, plus surety of adequate value (bank-specific)
Full legal route	Higher values	Succession certificate, probate of will, letters of administration or a court decree

For shares held in physical or demat form, SEBI's prescribed forms and the ready reckoners published by banks and registrars set out precisely what to file. The key practical point: a nomination makes the paperwork faster, but it does not decide ownership. A will, or the succession law, decides ownership.

The two-line fix that prevents most disputes

Name a nominee on every account, and write a will that clearly states who the final beneficiary is. The two work together: the nomination gets the asset safely out of the institution, and the will decides where it goes next. When the two are left unaligned, families argue - and the nominee is usually surprised to learn they are only a custodian.

> *The Digital Personal Data Protection Act, 2023 also lets you appoint a nominee to manage your personal digital data after death - emails, photos, social accounts. That is separate from your financial will and covers privacy, not property.*

PART 10

Intestate Succession: Who Inherits Under Hindu Law

If a Hindu, Jain, Sikh or Buddhist dies without a will, the Hindu Succession Act, 1956 decides who inherits. The rules are different for men and women, and they distinguish between ancestral and self-acquired property. This part covers the main routes; Part 12 explains the ancestral-versus-self-acquired distinction that decides which route applies.

When a Hindu man dies intestate

His separate (self-acquired) property devolves under Section 8 among four classes of heirs, in order. The first class - Class I - takes simultaneously, to the exclusion of everyone else.

Order	Who	Effect
Class I	Son, daughter, widow, mother, and the children of a predeceased son or daughter	Take together, in equal shares, excluding all lower classes
Class II	Father, siblings and their children, and certain other relatives	Take only if there is no Class I heir
Agnates	Relatives through the male line	Take only if no Class I or II heir
Cognates	Relatives through the female line	Take only if no agnate survives

The key point that families still get wrong: the widow, every son and every daughter take equal shares in the father's self-acquired property. There is no preference for the eldest son. A grandson whose own father is alive is not a Class I heir - only the child of a predeceased child is.

When a Hindu woman dies intestate

A Hindu woman owns all her property absolutely, whether self-acquired or inherited (Section 14). If she dies without a will, Section 15 applies, and the order of heirs depends on where the property came from. Broadly, her property first goes to her children (including the children of a predeceased child) and her husband. If none survive, it may pass to her husband's heirs, then to her own parents and their heirs, depending on whether the property came from her natal or her marital family.

Daughters: coparceners by birth since 2005

The Hindu Succession (Amendment) Act, 2005 rewrote Section 6. A daughter of a coparcener now becomes a coparcener in her own right by birth, in the same manner as a son, with the same rights and liabilities in coparcenary property. This applies whether she was born before or after the amendment. The Supreme Court settled the retrospective reach in Vineeta Sharma v. Rakesh Sharma (2020): the right is by birth, and it does not depend on whether the coparcener father was alive on 9 September 2005, so long as the property remained coparcenary.

Marriage does not remove the right. A married daughter is a coparcener in her father's ancestral property, and a Class I heir to his self-acquired property, exactly like a son.

The 2026 rulings that sharpened the picture

- In May 2026, the Supreme Court held that the 2005 amendment does not limit a daughter's independent right to inherit her father's property as a Class I heir when he dies intestate. A partition carried out among the sons alone cannot defeat the daughter's succession rights.

- In Darubai v. Kamalabai (2026), the Supreme Court reaffirmed that Class I heirs who inherit under Section 8 take as tenants-in-common, with definite and independent shares - not as joint family property. No heir can claim to be karta or alienate the whole on grounds of legal necessity.
- In June 2026, the Karnataka High Court held that self-acquired property a father received from his own father, even through a family partition, does not become ancestral property in the father's hands - so a daughter cannot claim a coparcenary birthright in it.

The practical lesson: a daughter's right is secure and equal. But whether it is a coparcenary birthright or an inheritance share depends on whether the property was genuinely ancestral. Part 12 explains how to tell the difference.

PART 11

Muslim, Christian and Parsi Succession

The rules for Muslims, Christians and Parsis differ from Hindu law in important ways - and in one case, the difference is large enough to change how much of your estate you can give away by will.

Muslim succession and the one-third rule

Muslim intestate succession follows classical Islamic jurisprudence, applied through the Muslim Personal Law (Shariat) Application Act, 1937, with separate doctrines for Sunni and Shia communities. Heirs are classified into sharers, who take fixed shares set by law, and residuaries, who take what remains. Shares take effect immediately on death, which leaves limited room for estate planning.

The big difference is testamentary freedom. Under the law of wasiyat, a Muslim testator can bequeath only up to one-third of the net estate - after funeral expenses and debts - without the consent of the other heirs, and that one-third is generally meant for non-heirs. Bequeathing more than one-third, or bequeathing to someone who is already a legal heir, requires the consent of all other heirs, given after the testator's death. A will that exceeds these limits is not void outright; courts scale it back to what the law permits, unless the heirs agree otherwise.

> *This one-third limit does not apply to a Muslim who married under the Special Marriage Act, 1954. In that case the Indian Succession Act's wider testamentary freedom applies instead. This is a common and costly misunderstanding.*

Christian and Parsi succession

Christians and Parsis are governed by the Indian Succession Act, 1925, for both the form of wills and intestate succession. For Christians, the intestate rules are in Chapter II of Part V of the Act and give equal inheritance rights regardless of gender, based on proximity of relationship. If a Christian dies leaving a spouse and children, the spouse takes one-third and the children share the rest. If there are no children but other kindred survive, the spouse takes one-half.

The rule that catches young couples

For Christians and Parsis, a will made before marriage is automatically revoked by the marriage. These communities must write a fresh will after they marry. This rule does not apply to Hindus, Sikhs, Jains or Buddhists, whose wills survive marriage - which is exactly why families assume it does not apply to them either. It does, if they are Christian or Parsi.

Interfaith and Special Marriage Act couples

Couples married under the Special Marriage Act, 1954 are governed by the Indian Succession Act for succession, whatever their personal religion. That means wider testamentary freedom than Muslim personal law would allow, and a single statutory framework rather than two competing personal laws. If you are in an interfaith marriage, this is the first thing to confirm and the first thing to state clearly in your will.

Community	Testamentary freedom	Will revoked by marriage?
Hindu, Jain, Sikh, Buddhist	Wide - may leave self-acquired property to anyone	No
Muslim (personal law)	Limited to one-third without heirs' consent	No

Community	Testamentary freedom	Will revoked by marriage?
Muslim (married under SMA, 1954)	Wide - Indian Succession Act applies	Handled under the Act
Christian	Wide	Yes - a pre-marriage will is revoked
Parsi	Wide	Yes - a pre-marriage will is revoked

PART 12

Ancestral vs Self-Acquired: The Hinge That Decides Everything

Every Hindu property dispute turns on one question: is this property ancestral or self-acquired? The answer decides whether the sons and daughters take a share by birth, or whether the owner is free to sell, gift or will the property to anyone. Get this classification wrong and the whole plan is wrong.

The two categories, defined

Ancestral (coparcenary) property	Self-acquired property
Inherited through an unbroken male line - father, paternal grandfather, paternal great-grandfather - without a division	Acquired by your own labour, skill or investment
Held jointly by the coparceners, with shares undefined until partition	Fully owned by you alone
Every coparcener, son or daughter, takes a share by birth	No one takes a share by birth
The holder's power to sell, gift or mortgage is limited - it needs legal necessity or benefit to the estate	The owner may sell, gift or settle it without anyone's concurrence

The test the Supreme Court uses

The classical test comes from C.N. Arunachala Mudaliar v. C.A. Muruganatha Mudaliar (1953): property a father gives or bequeaths to his son is presumed to be self-acquired in the son's hands, unless the donor's intention to make it ancestral is clearly shown. The character of the property is decided by the intention of the person who gave it, read from the document and the surrounding circumstances.

The break that changed everything

The Supreme Court in Commissioner of Wealth Tax v. Chander Sen (1986) held that property inherited by a son from his father on intestacy under Section 8 of the Hindu Succession Act, 1956 is the son's separate property - it does not become coparcenary property in his hands, and his own sons do not acquire a birthright in it. This broke from the classical Mitakshara position and is the single most important rule in modern Hindu succession. The 2026 Darubai v. Kamalabai decision reaffirms the same logic: heirs who inherit under Section 8 take as tenants-in-common, not as joint family property.

So what is still ancestral in 2026?

Property that retains genuinely ancestral character - received through the unbroken paternal line and still held jointly - continues to attract the coparcenary regime, and daughters as well as sons take a birthright in it (Vineeta Sharma, 2020). Property that a person bought, earned or received as a gift or under a will is self-acquired, and devolves under Section 8 as separate property. Property received on a partition can go either way depending on when and how the partition happened.

The three consequences that follow

1. Birthright. In ancestral property, every coparcener takes a share the moment they are born. In self-acquired property, nobody does.
2. Power to sell or gift. Ancestral property can be alienated only for legal necessity or the benefit of the estate; self-acquired property can be dealt with freely.

3 What happens on death. A coparcener's undivided interest in ancestral property devolves under Section 6. Self-acquired property devolves under Section 8 among the Class I heirs.

The everyday mistake: assuming that everything your father owned is 'father's property' and therefore ancestral. If he bought it himself, it is his self-acquired property, and he can leave it to anyone - including a charity, or one child. The classification, not the family relationship, decides the rule.

You can convert self-acquired property into joint family property

A Hindu can deliberately throw his self-acquired property into the joint family hotchpot, turning it into joint family property. This is a conscious act and should be documented. It is one of the few ways to change a property's character on purpose - and it should be done with advice, because it changes everyone's rights.

PART 13

The Senior Citizen's Shield: The 2007 Act

India gives its senior citizens a fast, cheap and unusually powerful legal remedy that most families never use. The Maintenance and Welfare of Parents and Senior Citizens Act, 2007 lets a senior citizen claim maintenance from children, and - crucially - cancel a property transfer made on the promise of care that was never honoured.

Maintenance: a quick route to a monthly sum

A senior citizen or parent who cannot maintain themselves from their own earnings or property can apply for maintenance against one or more children who are not minors. A childless senior citizen can apply against a relative who is in possession of, or would inherit, their property. Applications go to a Maintenance Tribunal set up for each subdivision and presided over by an officer not below the rank of Sub-Divisional Officer.

Feature	What the Act provides
Maximum maintenance	The Tribunal may order up to Rs. 10,000 per month, as prescribed by the state
Timeline	An application for interim maintenance is to be disposed of within 90 days of notice
Procedure	Summary procedure; the Tribunal has the powers of a civil court for evidence
Legal representation	Section 17 - no party may be represented by a legal practitioner
Appeal	To an Appellate Tribunal headed by an officer not below District Magistrate, within 60 days
Enforcement	The order has the same force as an order under the criminal procedure code; breach can lead to imprisonment

Section 23: the power that changes behaviour

Section 23 is the provision families should know. If a senior citizen transfers property by gift or otherwise, on the condition that the transferee will provide basic amenities and physical needs, and the transferee then refuses or fails to provide them, the transfer is deemed to have been made by fraud or coercion or undue influence - and can be declared void by the Tribunal, at the senior citizen's option.

The Supreme Court in Urmila Dixit v. Sunil Sharan Dixit upheld this power robustly. It confirmed that Tribunals under the Act may reverse a transfer that affects the welfare of elderly parents, order eviction, and restore possession of the property. It also held that the two conditions - a transfer subject to a condition of maintenance, and a failure to provide it - should be interpreted to further the beneficial purpose of the Act, not narrowly.

The catch: you must show the condition

The power is not automatic. In Sudesh Chhikara v. Ramti Devi, the Supreme Court refused to apply Section 23 where there was no averment that the transfer was subject to a condition of maintenance. Many transfers are made purely out of love, with no condition attached - and those cannot be reversed under Section 23. The lesson is practical: if you transfer property expecting care in return, put the condition in writing, in the deed itself.

For a senior citizen planning a transfer: never hand over the family home on a verbal promise of care. Either keep ownership and give a life interest, or make the transfer expressly conditional on maintenance, in writing. If you have already transferred it and the care stopped, the Tribunal under the 2007 Act is your fastest route - and you do not need a lawyer to appear for you.

PART 14

Tax on Inheritance Under the Income-tax Act, 2025

The single most important tax fact about inheritance in India is a relief: there is no inheritance tax. Receiving property under a will or on intestacy does not, by itself, create a tax bill. But the Income-tax Act, 2025, in force from 1 April 2026, governs what happens next - and that is where the money is made or lost.

Inheriting is not a taxable event

Property received under a will, or by succession or inheritance, is not treated as a transfer that generates capital gains in the giver's hands, and it is not taxed as income in the receiver's hands. Gifts and inheritances from relatives, and property received under a will or inheritance, are among the core exemptions that carry forward into the 2025 Act from the old Section 56(2)(x) framework. India has no estate duty and no inheritance tax.

The cost of what you inherit is the previous owner's cost

Here is the rule that decides your future tax bill. When you inherit an asset and later sell it, your cost of acquisition is treated as the cost the previous owner paid - not the market value on the date of death. And your holding period includes the time the previous owner held it. So an asset your father bought in 2010 and you sell in 2027 is long-term in your hands from day one, and your gain is measured against his original purchase price.

> *Worked example: your father bought a flat for Rs. 20 lakh in 2010. You inherit it in 2026 and sell it in 2027 for Rs. 90 lakh. Your gain is calculated against his cost of Rs. 20 lakh (with the indexation or base-year adjustment the 2025 Act allows), and the holding period runs from 2010 - so it is a long-term capital gain. Keep his purchase deed and payment records. They are your proof of cost, and without them the tax officer may assume a much higher cost base or a lower one.*

Gifts are still watched

Gifts of money, immovable property and specified movable property received without consideration, or for inadequate consideration, above the prescribed threshold are taxable in the recipient's hands. The exemptions for gifts from relatives, on the occasion of marriage, and under a will or inheritance continue under the 2025 Act. A family settlement culminating in a gift deed between members of a Hindu undivided family has been held by the Income Tax Appellate Tribunal not to attract the deeming provisions, because property received from a relative is excluded and the settlement was between members with antecedent rights - but the outcome turns on the facts, so document the settlement carefully.

What changed with the 2025 Act

- The Act reorganised and renumbered the capital-gains and gifts provisions. A will, a trust deed or an estate plan that quotes old section numbers now contains stale references.
- The concept is carried forward - gifts above the threshold are taxable, inheritances and gifts from relatives are exempt - but the wording and cross-references are new.
- The cost-of-acquisition and holding-period rules for inherited assets remain conceptually similar, so a properly documented estate still works.

The four records to keep for every inherited asset

1. The original purchase deed or purchase statement, showing what the previous owner paid.

2. Proof of the previous owner's date of acquisition, to establish the long holding period.
3. The will or succession document establishing your title.
4. Records of any improvement or capital expenditure on the asset, which can be added to your cost.

Tax law and personal law interact. A step that is efficient for succession can be inefficient for tax, and vice versa. For a large estate, a trust, or cross-border assets, get a chartered accountant and an advocate to look at the plan together before you sign anything.

PART 15

Digital Assets and the DPDP Nominee

A modern Indian estate includes things the older generation never had: a demat account, mutual fund folios held online, a small business run on Instagram, cryptocurrency, and a phone full of photos and messages. Most wills never mention them, and they quietly disappear.

Digital assets are inheritable property

Cryptocurrency, online investment accounts, monetised websites and online businesses are recognised as inheritable property in India. They should be listed in your will like any other asset - by platform, account and what you want done with it. But credentials should not be written inside the will itself, because the witnesses may see it. Keep passwords and recovery codes in a sealed envelope stored with the original will, and tell your executor where it is.

The DPDP Act 2023 nominee

The Digital Personal Data Protection Act, 2023 lets you appoint a nominee to manage your personal digital data after your death - emails, photographs, social media accounts and similar. This is separate from your financial will and is about privacy, not property. It is worth appointing, because without it, platforms may refuse access to family members even where a financial asset is involved.

Digital asset	Where it is held	What to do
Shares and ETFs	Demat account with a depository participant	Name a nominee; list the DP and demat number in the will
Mutual funds	AMC or registrar, or a demat account	Name a nominee; record folio numbers
Bank balances	Bank account, including online-only accounts	Name a nominee; keep a list of accounts
Cryptocurrency	Exchange or self-custody wallet	List the platform or wallet; store keys in a sealed envelope, never in the will
Online business or creator income	Platform accounts and payment gateways	Name the business, its accounts and the intended beneficiary
Photos, email, social accounts	Various platforms	Appoint a DPDP nominee; list key accounts

The asset inventory that makes a will work

The most useful page in this book is the asset inventory worksheet in Part 19. Fill it in, keep it with the will, and update it every year. An executor who knows where everything is - which bank, which demat, which folio, which platform - can move an estate in weeks instead of years. An executor who has to reconstruct your financial life from scratch will miss assets, and missed assets are lost assets.

> *A simple rule for a digital age: your will says who gets what; your inventory says where it is; your sealed envelope says how to get in. Three documents, one system.*

PART 16

NRIs and Cross-Border Estates

If you are an Indian living abroad, or you have family abroad, an Indian estate gains a second dimension. The good news is that Indian law handles foreign wills. The practical risk is that a foreign will, applied to Indian assets, gets stuck in procedure.

Foreign wills are recognised, but a local will is easier

It is not mandatory for a non-resident to make a separate Indian will for assets in India. A foreign will, executed and proved under the law of the country where it was made, can be recognised in India under Section 228 of the Indian Succession Act, 1925, and can be submitted for ancillary probate before an Indian court. That said, if you hold substantial Indian assets, a separate Indian will is usually administratively easier - it avoids procedural delays and simplifies dealing with Indian banks, depositories and registrars, who are more comfortable with a document they recognise.

Which law applies to your Indian assets

For property physically in India, Indian law applies to succession, whatever your domicile. For movable assets, the position can be more complicated, and your personal law may follow you. The rule of thumb: Indian immovable property is governed by Indian succession law; the practical answer for everything else is to make your intention unmistakable in a will that Indian institutions can act on.

The practical checklist for an NRI

1. Make a will that covers your Indian assets specifically, naming them and the Indian institutions that hold them.
2. State clearly whether you are also making a foreign will, and which assets each one covers, so there is no conflict.
3. Name an executor who is in India, or who can act through a power of attorney, so the estate does not wait on someone overseas.
4. Keep certified copies of your passport, PAN, Aadhaar (if held) and proof of your foreign address with the will.
5. Check the exchange-control and repatriation rules for moving the proceeds of an Indian estate abroad, and the tax position in your country of residence. India has no inheritance tax, but your country of residence may tax you on what you receive.

Nomination and transmission from abroad

For Indian bank accounts, shares and mutual funds, an NRI heir faces the same transmission process as anyone else, but with more paperwork - notarised and apostilled documents, and often a locally attested death certificate. Naming a nominee and keeping an Indian executor make the difference between a process of weeks and a process of years. Do not leave this to be sorted out after a death.

Cross-border estates are where the interaction of two legal systems, two tax systems and two sets of exchange-control rules can quietly cost a family a large part of the estate. This is one area where professional advice is not optional.

PART 17

The 90-Day Estate Action Plan

When someone dies, the family is grieving and also facing a mountain of paperwork with deadlines. This plan puts it in order. It assumes an Indian estate, and it works whether or not there is a will. Adjust the pace to your situation, and start with the first three steps in the first week.

Days 1 to 15: secure, register, and locate

1. Get 12 to 15 original death certificates from the municipal authority. You will need certified copies for banks, depositories, the registrar, the employer and the tax department.
2. Locate the will. Check the original in the family's safe place, any registered copy at the Sub-Registrar, and any sealed-cover deposit. Read it before you promise anyone anything.
3. Secure the assets. Note bank balances, lockers, demat holdings and physical valuables. Do not distribute anything yet.
4. Inform the employer, if the deceased was working, and ask about provident fund, gratuity, pension and any group insurance.
5. Inform the banks and, if a locker is involved, follow the bank's procedure for a joint or survivor access.

Days 16 to 45: claim, notify, and file

1. File life-insurance claims with the insurer, using the policy, death certificate and the nominee's KYC.
2. Submit provident fund and pension claims through the employer or EPFO, using the prescribed forms and the legal heir or succession documents the office asks for.
3. Notify the depository participant, mutual fund registrar and share registrar, and start transmission using the value-based slab that applies (Part 9).
4. Notify the income-tax department through the deceased's e-filing account and, where needed, file the final return.
5. For immovable property, start the mutation with the municipal or revenue authority, and confirm the registrar's requirement for a will or succession document.

Days 46 to 90: transfer, settle, and close

1. Complete the transmission of shares, mutual funds and bank balances to the legal heirs, following the institution's ready reckoner.
2. Register the transfer of immovable property, or the mutation of the deceased's name to the heirs, at the Sub-Registrar and the revenue office.
3. Settle the deceased's liabilities - loans, credit cards, utility dues - from the estate, keeping receipts.
4. If there is a dispute or a challenge, or the estate is large or complex, engage an advocate now and decide whether to seek probate or letters of administration.
5. Prepare a written statement of accounts for all the heirs, so the distribution is transparent and nobody is left guessing.

The single most important early decision

Decide, in the first two weeks, whether the estate can be handled by the family directly or needs a court grant. If there is a valid will and a willing executor, in most cases you can act on it directly now that mandatory probate is gone. If there is no will, or the institution insists on a court document, start the succession certificate or letters of administration process early - it is the long pole in the tent, and starting late costs months.

Keep one master file - physical or digital - with every certificate, form and receipt, indexed by asset. When an institution asks for the same document for the third time, the file pays for itself.

PART 18

Twelve Mistakes That Void a Will or Start a Family War

Most inheritance disasters are not caused by bad luck. They are caused by a small number of repeatable mistakes. Avoid these twelve and you have avoided almost all of them.

1. Not signing every page. Sign and initial each page, and number them, so no page can be swapped or disputed.
2. Using a beneficiary as a witness. It invites a challenge that the will was procured by influence. Choose independent witnesses.
3. Leaving witnesses untraceable. Write each witness's full name, address and phone number, so they can be found years later.
4. Relying on registration alone. Registration is evidence, not proof of validity. The Section 63 requirements still apply (Part 6).
5. Describing assets vaguely. 'My flat' is not enough. Use the full address, the deed number, the account number.
6. Forgetting the residuary clause. Everything you did not name needs a destination, or it falls to the statutory order.
7. Not updating after a life event. A will made before a marriage, divorce, birth or big purchase is often out of date and sometimes revoked.
8. Assuming the nominee owns the money. Nominees are custodians for most assets. Align the nomination with the will (Part 9).
9. Leaving out digital assets. Crypto, online businesses and digital accounts are real wealth and are routinely lost (Part 15).
10. Handing over the family home on a verbal promise. Without a written condition, the senior citizen's protection under the 2007 Act may not apply (Part 13).
11. Confusing 'father's property' with ancestral property. Most of it is self-acquired, and the owner can leave it to anyone (Part 12).
12. Hiding the will. A will nobody can find is a will that does not exist. Tell your executor where the original is, and keep a copy safe.

The two mistakes that are really about people

Two of the twelve are not legal at all. Not updating a will, and hiding it, are about communication. The most bitter disputes in Indian families are not about the law - they are about surprise. A will that no one has been told about, that changes long-held expectations, will be challenged even when it is perfectly valid. The cheapest insurance against a family war is a conversation, while you are alive, about what you intend and why.

> *A will is a legal document. An estate plan is a legal document plus a conversation. Do both.*

The five-minute self-audit

Check	Done?
A valid will exists, signed on every page, with two traceable witnesses	
It has a revocation clause, specific bequests and a residuary clause	

Check	Done?
An executor and an alternate are named	
A guardian is named, if there are minor children	
Nominees are named on every account, and aligned with the will	
Digital assets and their location are recorded	
The original is stored safely, and the executor knows where	
The will was reviewed after the last marriage, divorce, birth or big purchase	

PART 19

Templates and Worksheets

This part gives you fill-in templates you can copy and adapt. They are deliberately simple. Replace the bracketed text with your details, delete what does not apply, and sign with two witnesses as Part 6 explains. They are a starting point, not a substitute for professional drafting where the estate is complex.

Template A: A simple will

I, [full name], son/daughter of [parent's name], aged [age], residing at [full address], being of sound mind and acting of my own free will, declare this to be my last will. I revoke all earlier wills and codicils made by me.

My family consists of my spouse, [name], and my children, [names]. [Add any other dependants.]

1. I give my entire legally owned share and interest in the residential property at [complete address], to [beneficiary's full name], subject to applicable liabilities and third-party rights.

2. I give my bank account(s) with [bank name], account number(s) [numbers], to [beneficiary's full name].

3. I give my demat account with [depository participant], demat number [number], and the shares and mutual funds held in it, to [beneficiary's full name].

4. I give my jewellery described as [description] to [beneficiary's full name].

5. I give the rest and remainder of my estate, wherever situated and not otherwise disposed of under this will, to [residuary beneficiary]. If that beneficiary does not survive me, the residue shall pass to [alternate].

I appoint [name, address] as the executor of this will. If [name] is unable or unwilling to act, I appoint [alternate name, address] as executor.

Signed by me at [place] on [date]. Signature: _____ . Witness 1: [name, address, phone, signature]. Witness 2: [name, address, phone, signature].

Template B: A codicil

I, [full name], residing at [full address], refer to my will dated [date]. I wish to make the following change: [state the change clearly]. In all other respects I confirm my will dated [date] and all codicils to it. Signed by me at [place] on [date]. Signature: _____ . Witness 1: [name, address, phone, signature]. Witness 2: [name, address, phone, signature].

Template C: Asset inventory (keep with the will)

Asset	Where held / identifier	Nominee named?	Intended beneficiary
House / flat	Address, deed number	n/a	

Asset	Where held / identifier	Nominee named?	Intended beneficiary
Bank account	Bank, branch, account no.		
Fixed deposits	Bank, FD numbers		
Demat account	DP, demat no.		
Mutual funds	AMC / registrar, folio no.		
Life insurance	Insurer, policy no.		
PPF / NPS / pension	Account number		
Jewellery / valuables	Description, location	n/a	
Cryptocurrency	Exchange / wallet		
Online business / creator income	Platform, account		
Digital data (photos, email, social)	Platforms	DPDP nominee	

Template D: Executor's checklist

Step	Done?
Obtain 12-15 original death certificates	
Locate and read the will; confirm its validity	
Secure all assets; do not distribute yet	
List every asset, account and liability	
Notify banks, depositories, registrars and the employer	
File insurance, provident fund and pension claims	
Complete transmissions using the correct value-based slab	
Complete property mutation and registration	
Settle liabilities from the estate	
Decide on probate or letters of administration if needed	
Prepare a written statement of accounts for all heirs	
Distribute the estate, and record every transfer	

Template E: The document vault

Whatever the asset, the same small set of documents is asked for again and again. Keep scanned copies of these in one place - a folder in the cloud, and a physical envelope - so no request finds you unprepared.

- Death certificates (multiple originals).
- The will, and any codicil, plus a registered copy if registered.
- Proof of identity and address of every heir and the nominee.
- The deceased's PAN and Aadhaar (where held), and the last income-tax return.
- Property deeds, share certificates, demat and folio numbers, insurance policies.

- Bank account details, and any nomination records.
- The asset inventory (Template C).

Print this part. Fill it in by hand if that is easier. A filled-in inventory and a signed will are worth more to your family than any amount of financial sophistication.

PART 20

Four Families, Four Outcomes

Law becomes clear only when you watch it work on a real family. These four scenarios are composites, built from the rules in this book and the patterns that recur in Indian succession disputes. None is legal advice for your situation, but each shows where families win and where they lose.

Case 1: The father who died without a will

A retired government officer in Pune dies suddenly, leaving a flat he bought himself in 1998, a bank balance and some shares. His widow and three children - two sons and a daughter - assume the flat will go to the elder son because he lives there. There is no will. Under the Hindu Succession Act, the flat is self-acquired property and devolves under Section 8 among the Class I heirs: the widow, both sons and the daughter, in equal shares. The elder son has no special claim. Because there is no will and no nomination on some accounts, the family needs a succession certificate for the shares and deposits, which takes months.

What would have changed the outcome: a one-page will naming the flat, the accounts and the intended beneficiaries, plus nominations on every account. The family would have avoided the court process entirely.

Case 2: The daughter who was told she had no share

In a Haryana family, the father dies intestate. The sons divide the ancestral agricultural land among themselves by a partition deed, leaving out their sister, who had married and moved away. Years later she sues for partition. The sons argue that the 2005 amendment does not apply because the partition happened under the old understanding, and that a pre-2004 partition is protected. The Supreme Court's position is clear: the daughter is a coparcener by birth in genuinely ancestral property (Vineeta Sharma, 2020), and - as the Court held again in May 2026 - the 2005 amendment does not take away her independent right to inherit her father's property as a Class I heir when he dies intestate. A partition among the sons alone cannot defeat her right.

The lesson: a daughter's right is secure and equal. The only real question is whether the property was genuinely ancestral, which decides whether she claims a birthright or an inheritance share.

Case 3: The senior citizen who gave away the house

A 72-year-old widow in Jaipur transfers her only house to her son by a gift deed, on his promise that he will look after her. The son's family later stops caring for her and asks her to leave. She approaches the Maintenance Tribunal under the 2007 Act. Because the gift deed records the condition that the son will maintain her, Section 23 applies: the transfer is deemed to have been made by fraud or coercion or undue influence and can be declared void. Following Urmila Dixit v. Sunil Sharan Dixit, the Tribunal can cancel the gift and restore possession to her - without her needing a lawyer to appear for her.

The lesson, and the warning: Section 23 works only if the condition of maintenance is in the document. Had she transferred the house out of pure love, with no condition recorded, the Tribunal could not have reversed it. If you transfer property expecting care, put the condition in writing.

Case 4: The NRI estate that stalled

A software engineer in the United States dies in an accident, leaving a US will, an Indian bank account, mutual funds, and a flat in Bengaluru that is still in his late father's name. His wife in India needs to move the assets. The Indian institutions will not act on the US will directly without ancillary probate under Section 228, and the flat cannot be transmitted because the title still stands in the father's name and no separate Indian will covers it. The family ends up running two proceedings - one to establish the US will in India, and one to sort out the father's un-administered estate - while the bank balance sits frozen.

What would have changed it: a separate Indian will covering the Indian assets, a named Indian executor able to act under a power of attorney, and a completed transmission of the father's flat at the time of his death rather than leaving the title unresolved. The lesson for every NRI family: an Indian estate that was never properly closed in one generation becomes a second-generation problem.

The pattern across all four

In three of the four cases, the outcome was decided before anyone died - by whether a will existed, whether nominations were aligned, and whether a condition was written down. Succession law rarely produces a surprise that a little paperwork could not have prevented. The families that do well are not the ones with the most money; they are the ones who wrote it down.

> *One hour, one signed page, two witnesses, and a list of where everything is. That is the whole difference between a two-month transfer and a twelve-year dispute.*

PART 21

FAQs and Sources

Frequently asked questions

Do I need a lawyer to make a will in India?

No. For a simple estate you can write and sign a valid will yourself. Bring in an advocate for disputed property, business interests, agricultural land across states, a beneficiary who needs a trust, cross-border assets, or a family where a challenge is likely.

Is a will on plain paper valid?

Yes. A will needs no stamp paper, no notarisation and no registration. It needs to be in writing, signed by you, and attested by two witnesses, with you of sound mind and acting freely.

Is probate still required?

No. The Repealing and Amending Act, 2025 omitted Section 213 of the Indian Succession Act, 1925, which had made probate compulsory in certain cases in the old presidency towns. Mandatory probate no longer exists anywhere in India. Probate remains available voluntarily, and may be worth seeking if the estate is disputed, large or complex.

Does a registered will prove itself?

No. The Supreme Court confirmed in Pazhanathal v. Alamathal (August 2026) that a will is not valid merely because it is signed or registered. The person relying on it must prove due execution and attestation under Section 63(c). Registration is strong evidence, not proof.

Does the nominee on my account become the owner?

Usually not. For bank accounts, demat accounts and mutual funds, the nominee is a custodian who collects the asset for the legal heirs. Life insurance is the main exception, where the nominee usually receives the payout as beneficial owner.

Does my daughter inherit equally?

Yes. A daughter is a Class I heir to her father's self-acquired property and, since the 2005 amendment, a coparcener by birth in ancestral property. Marriage does not remove her right. The Supreme Court reaffirmed these principles in Vineeta Sharma (2020) and again in 2026.

Is there an inheritance tax in India?

No. Receiving property under a will or on intestacy does not create a tax bill. But when you later sell an inherited asset, your cost is the previous owner's cost and your holding period includes theirs - so keep the original purchase records.

What happens to my property if I die without a will?

It passes under the succession law of your religion: the Hindu Succession Act, 1956 for Hindus, Jains, Sikhs and Buddhists; Muslim personal law for Muslims; the Indian Succession Act, 1925 for Christians, Parsis and anyone married under the Special Marriage Act, 1954.

Can I disinherit my children?

Within the limits of your personal law, yes for self-acquired property - a Hindu, Christian or Parsi testator can leave self-acquired property to anyone. A Muslim testator is limited to one-third without the heirs' consent, and no one can take away a coparcener's birthright in genuinely ancestral property.

How do I register a will?

Sign it with two witnesses, then take it to the Sub-Registrar of Assurances with identity and address proof and the witnesses' identity proof. The testator and witnesses sign in the Sub-Registrar's presence. Fees are nominal and vary by state (Part 7).

How long does it take to transfer assets after a death?

With a clear will, an executor and named nominees, most assets can move in weeks. Without them, a succession certificate or letters of administration can take months to a few years, depending on the court and whether the estate is contested.

Can a senior citizen take back property given to a child who stopped caring?

Often yes, under Section 23 of the Maintenance and Welfare of Parents and Senior Citizens Act, 2007 - but only if the transfer was made subject to a condition of maintenance. The Supreme Court upheld this power, including the restoration of possession, in Urmila Dixit v. Sunil Sharan Dixit.

Sources

This playbook is built from primary law and official or authoritative sources, current to October 2026. Where a rule can change, confirm the current position before you act.

- Indian Succession Act, 1925 - Sections 2(h), 63, 68 (evidence), 109, 213 (now omitted), 228, and Part X on succession certificates.
- Hindu Succession Act, 1956 - Sections 6, 8, 10, 14, 15, 19 and 30, as amended by the Hindu Succession (Amendment) Act, 2005.
- Registration Act, 1908 - Sections 18 and 40 to 45.
- Muslim Personal Law (Shariat) Application Act, 1937.
- Maintenance and Welfare of Parents and Senior Citizens Act, 2007 - Sections 4, 5, 7, 9, 15, 16, 17 and 23.
- Income-tax Act, 2025 (in force from 1 April 2026), and the Income-tax Act, 1961 provisions it replaced, on gifts and capital gains.
- Digital Personal Data Protection Act, 2023.
- The Repealing and Amending Act, 2025 (Act No. 37 of 2025).
- Supreme Court of India: Vineeta Sharma v. Rakesh Sharma (2020); Gopal Krishan v. Daulat Ram (2 January 2025); Urmila Dixit v. Sunil Sharan Dixit (2025); Darubai v. Kamalabai (2026); Pazhanathal v. Alamathal (13 August 2026); and the May 2026 ruling on daughters' Class I rights.
- SEBI circulars and bank and registrar standard operating procedures on transmission of securities, and the e-Daakhil and consumer-affairs portals where relevant.
- Official registration portals of the states (for example, igrsup.gov.in, igregistration.maharashtra.gov.in, tnreginet.gov.in, igrs.rajasthan.gov.in).

This is general information, not legal or tax advice, and it does not create any professional relationship. Succession law depends on your personal law, your family and your assets. For your own situation, and before signing anything, consult a qualified advocate or, for tax, a chartered accountant.